§ 410.205 *Supplies under certain prior contracts.*

§ 410.205–1 *Contracts prior to June 1, 1944.* With respect to contracts entered into prior to June 1, 1944, and any amendments and change orders thereto, exemption is available from all manufacturers' and retailers' excise taxes, and shall be claimed in accordance with procedures prescribed by each respective Department.

§ 410.205–2 *Contracts prior to July 1, 1947.* With respect to contracts entered into prior to July 1, 1947, and any amendments and change orders thereto, exemption is available from Federal excise taxes with respect to sales of (a) radio and musical equipment (§ 410.101–3), (b) firearms, shells, and cartridges (§ 410.101–10), and (c) pistols and revolvers (§ 410.103), which exemption shall be claimed in accordance with procedures prescribed by each respective Department.

§ 410.206 *Other exemptions.* There are also available certain other exemptions from Federal excise taxes. Such exemptions shall be claimed only to the extent and in accordance with procedures prescribed by each respective Department.

§ 410.207 *Tax exemption forms.* The applicable standard Government tax exemption forms shall be used in accordance with procedures prescribed by each respective Department.

SUBPART C—STATE AND LOCAL TAXES

§ 410.301 *Applicability.* As a general rule, Government purchases are exempt from state and local taxes. This exemption shall be made use of to the fullest extent available, by means of purchase on a tax-exclusive basis and execution of an approved tax exemption certificate. Whenever there is any doubt as to the availability of such exemption, the matter shall be referred to the appropriate office of the Department concerned.

§ 410.302 *Tax exemption forms.* Tax exemption forms with respect to state and local taxes, and the use thereof, shall be in accordance with procedures prescribed by each respective Department.

SUBPART D—CONTRACT CLAUSES

§ 410.401 *Fixed-price contracts.* The following clause is approved for use, at the option of the Contracting Officer, in fixed-price contracts:

FEDERAL, STATE AND LOCAL TAXES

(a) *Definitions.* As used throughout this clause, the following terms shall have the meanings set forth below:

(i) The term "direct tax" means any tax or duty directly applicable to the completed supplies or services covered by this contract, or any other tax or duty from which the Contractor or this transaction is exempt. It includes any tax or duty directly applicable to the importation, production, processing, manufacture, construction, sale, or use of such supplies or services; it also includes any tax levied on, with respect to, or measured by sales, receipts from sales, or use of the supplies or services covered by this contract. The term does not include transportation taxes, unemployment compensation taxes, social security taxes, income taxes, excess-profits taxes, capital stock taxes, property taxes, and such other taxes as are not within the definition of the term "direct tax" as set forth above in this paragraph.

(ii) The term "the contract date" means the effective date of this contract if it is a negotiated contract, or the date set for the opening of bids if it is a contract entered into as a result of formal advertising.

(b) *Federal taxes.* Except as may be otherwise provided in this contract, the contract price includes all applicable Federal taxes in effect on the contract date.

(c) *State or local taxes.* Except as may be otherwise provided in this contract, the contract prices does not include any State or local direct tax in effect on the contract date.

(d) *Evidence of exemption.* The Government agrees, upon request of the Contractor, to furnish a tax exemption certificate or other similar evidence of exemption with respect to any direct tax not included in the contract price pursuant to this clause; and the Contractor agrees, in the event of the refusal of the applicable taxing authority to accept such evidence of exemption, (i) promptly to notify the Contracting Officer of such refusal, (ii) to cause the tax in question to be paid in such manner as to preserve all rights to refund thereof, and (iii) if so directed by the Contracting Officer, to take all necessary action, in cooperation with and for the benefit of the Government, to secure a refund of such tax (in which event the Government agrees to reimburse the Contractor for any and all reasonable expenses incurred at its direction).

(e) *Price adjustment.* If, after the contract date, the Federal Government or any State or local government either (i) imposes or increases (or removes an exemption with respect to) any direct tax, or any tax directly applicable to the materials or components used in the manufacture or furnishing of the completed supplies or services covered by this contract, or (ii) refuses to accept the evidence of exemption, furnished under paragraph (d) hereof, with respect to any direct tax excluded from the contract price, and if under either (i) or (ii) the Contractor is obliged to and does pay or bear the burden of any such tax (and does not secure a refund thereof), the contract price shall be correspondingly increased. If, after the contract date, the Contractor is relieved in whole or in part from the payment or the burden of any direct tax included in the contract price, or any tax directly applicable to the materials or components used in the manufacture or furnishing of the completed supplies or services covered by this contract, the Contractor agrees promptly to notify the Contracting Officer of such relief, and the contract price shall be correspondingly decreased or the amount of such relief paid over to the Government. Invoices or vouchers covering any increase or decrease in contract price pursuant to the provisions of this paragraph shall state the amount thereof, as a separate added or deducted item, and shall identify the particular tax imposed, increased, eliminated, or decreased.

(f) *Refund or drawback.* If any tax or duty has been included in the contract price or the price as adjusted under paragraph (e) of this clause, and if the Contractor is entitled to a refund or drawback by reason of the export or re-export of supplies covered by this contract, or of materials or components used in the manufacture or furnishing of the completed supplies or services covered by this contract, the Contractor agrees that he will promptly notify the Contracting Officer thereof and that the amount of any such refund or drawback obtained will be paid over to the Government or credited against amounts due from the Government under this contract; *Provided, however,* That the Contractor shall not be required to apply for such refund or drawback unless so requested by the Contracting Officer.

§ 410.402 *Cost-reimbursement contracts.* No specific tax clause is required in any cost-reimbursement contract. In all such contracts the problem of Federal, State and local taxes (which presents solely a question of allowability of costs in connection with the performance of cost-reimbursement contracts) is covered in the contract clause dealing with reimbursement of costs and is treated elsewhere in this subchapter in the part entitled "Contract Cost Principles."

[F. R. Doc. 49–893; Filed, Feb. 7, 1949; 8:53 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

[Circular 1722]

PART 196—PHOSPHATE LEASES AND USE PERMITS

Correction

In Federal Register Document 49–703, appearing at page 411 of the issue for Saturday, January 29, 1949, the original document has been corrected so that the twenty-fourth line of § 196.9 will read, "annual rental deposited by the".

Appendix—Public Land Order

[Public Land Order 549]

ALASKA

WITHDRAWING CERTAIN PUBLIC LAND AS ADMINISTRATIVE SITE FOR BUREAU OF LAND MANAGEMENT AND PARTIALLY REVOKING EXECUTIVE ORDER NO. 8102 OF APRIL 29, 1939

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Subject to valid existing rights and the provisions of existing withdrawals, the following-described land in Alaska is hereby withdrawn from all forms of appropriation under the public-land laws, including the mining laws but not the mineral leasing laws, and reserved for the use of the Bureau of Land Management, Department of the Interior, as an administrative site:

SEWARD MERIDIAN

T. 13 N., R. 3 W.,
Sec. 9, SE¼SW¼.

The area described contains 40 acres.

Executive Order No. 8102 of April 29, 1939, reserving certain public land for the use of the War Department as a military reservation is hereby revoked as to the above described tract.

The land is subject to Power Site Classification No. 107 of June 12, 1925.

C. GIRARD DAVIDSON,
Assistant Secretary of the Interior.

JANUARY 31, 1949.

[F. R. Doc. 49–910; Filed, Feb. 7, 1949; 8:54 a. m.]

TITLE 49—TRANSPORTATION AND RAILROADS

Chapter I—Interstate Commerce Commission

PART 122—MONTHLY OPERATING REPORTS

REPORTS OF OPERATING STATISTICS

At a session of the Interstate Commerce Commission, Division 1, held at its office in Washington, D. C., on the 28th day of October A. D. 1948.

The matter of monthly reports of operating statistics of Class I steam railways being under consideration:

It is ordered, That the order dated September 20, 1944, in the matter of monthly reports of operating statistics of Class I steam railways (49 CFR, 122.3), be, and it is hereby modified with respect to the forms of monthly reports, effective January 1, 1949, as follows:

§ 122.3 *Operating statistics.* Commencing with the month of January 1949, and monthly thereafter until further order, each and every Class I steam railway, including Class I switching and terminal companies, subject to the provisions of section 20, Part I of the Interstate Commerce Act, is hereby required to file monthly reports of operating statistics in accordance with forms of reports and notes of instructions thereon designated:

Form OS–A—Freight Train Performance
Form OS–B—Passenger Train Performance
Form OS–C—Yard Service Performance
Form OS–D—Revenue Traffic
Form OS–E—Fuel and Power Statistics
Form OS–F—Motive Power and Car Equipment

which forms are attached hereto[1] and made a part of this order: *Provided however*, That Class I switching and terminal companies are not required to submit reports on forms designated Forms OS–A, OS–B, and OS–D. Such monthly reports shall be filed in duplicate in the Bureau of Transport Economics and Statistics, Interstate Commerce Commission, Washington, D. C., on or before the dates indicated in the notice on each form. (24 Stat. 386, 34 Stat. 593, 35 Stat. 649, 36 Stat. 556, 41 Stat. 493, 54 Stat. 916; 49 U. S. C. 20 (1)–(8)

By the Commission, Division 1.

[SEAL] W. P. BARTEL, *Secretary.*

[F. R. Doc. 49–906; Filed, Feb. 7, 1949; 8:51 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF THE INTERIOR

Fish and Wildlife Service

Alaska Game Commission

[50 CFR, Parts 46, 161–163]

ALASKA WILDLIFE PROTECTION

NOTICE OF PROPOSED RULE MAKING

Pursuant to section 4 (a) of the Administrative Procedure Act, approved June 11, 1946 (60 Stat. 237, 239), notice is hereby given:

(a) That under authority contained in section 9 of the Alaska Game Law (57 Stat. 306; 48 U. S. C. 198) the Secretary of the Interior intends to adopt amendments to the Alaska Game Regulations modifying existing seasons, bag limits, and closure of areas necessary to insure proper conservation and utilization of the wildlife resources of Alaska. In addition, some provisions relating primarily to the administration of the Alaska Game Law may be amended in minor respects for the purpose of clarifying the application of the regulations and to facilitate the administration of the Alaska Game Law.

(b) That under authority of section 8 and sub-division M of section 10 of the Alaska Game Law of July 1, 1943 (57 Stat. 301, 310) as amended, the Alaska Game Commission intends to consider the advisability of amending the regulations of the Alaska Game Commission respecting qualification of guides, poisons, licenses, and establishment of the fur management areas.

The regulations referred to in paragraphs (a) and (b) above are to be effective beginning July 1, 1949.

Interested persons are hereby notified that at a hearing of the Alaska Game Commission to be held at the Federal Building, Juneau, Alaska, on February 14, 1949, the said proposed regulations will be considered, and any such person may present his views, data or arguments with respect thereto. Such interested persons are also hereby given an opportunity to participate in preparing the regulations for issuance as set forth by submitting their views, data, or arguments in writing to Albert M. Day, Director, Fish and Wildlife Service, Washington 25, D. C. To assure full consideration of such communications, they must be received in the Fish and Wildlife Service not later than March 15, 1949.

[SEAL] J. A. KRUG, *Secretary of the Interior.*

FEBRUARY 4, 1949.

[F. R. Doc. 49–965; Filed, Feb. 7, 1949; 9:00 a. m.]

DEPARTMENT OF AGRICULTURE

Production and Marketing Administration

[7 CFR, Part 966]

[Docket No. A0164–A1]

HANDLING OF ORANGES GROWN IN CALIFORNIA AND ARIZONA

DECISION WITH RESPECT TO PROPOSED MARKETING AGREEMENT AND TO PROPOSED AMENDMENTS TO MARKETING ORDER

Correction

In Federal Register Document 49–533, appearing at page 297 of the issue for Thursday, January 20, 1949, in the third column on page 305, paragraph (a) (3) should read: "(3) the total quantity disposed of for export, showing the destination and quantity of each such disposition;".

NOTICES

DEPARTMENT OF THE TREASURY

United States Coast Guard

[CGFR 49–1]

APPROVAL OF EQUIPMENT

By virtue of the authority vested in me, as Commandant, United States Coast Guard, by R. S. 4405, 4491, as amended; 46 U. S. C. 375, 489; and section 101 of Reorganization Plan No. 3 of 1946 (11 F. R. 7875, 60 Stat. 1097), as well as the additional authorities cited with specific items below, the following approvals of equipment are prescribed and shall be effective for a period of five years from date of publication in the FEDERAL REGISTER unless sooner canceled or suspended by proper authority:

BUOYANT CUSHIONS, KAPOK, STANDARD

NOTE: Cushions are for use on motorboats of classes A, 1, or 2 not carrying passengers for hire.

Approval No. 160.007/77/0, Standard kapok buoyant cushion, U. S. C. G. Specification 160.007, manufactured by Art-Mar Manufacturing Co., 1073 East 54th St., Indianapolis, Ind.

(54 Stat. 164, 166; 46 U. S. C. 526e, 526p; 46 CFR 25.4–1, 160.007)

BUOYANT CUSHIONS, NON-STANDARD

NOTE: Cushions are for use on motorboats of classes A, 1, or 2 not carrying passengers for hire.

Approval No. 160.008/401/0, 14" x 18" x 2" rectangular buoyant cushion, 22 oz.

[1] Filed as a part of the original document.